TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
FEBRUARY 24, 2020
MINUTES

Attachment 1--**Staff Report**

Present: Barry Wolff, Vice-chair, Elliott Barrow, Stephen Wood, Stephen Duke, Megan Stevens.
Absent: David Rubin, Beth Santilli.

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda
B. Approval of Minutes

- *Mr. Wood moved for approval of the agenda and minutes. Mr. Duke seconded the motion. All in favor.*

C. Public Comment

There being no public comment, Mr. Wolff continued with the agenda.

D. General Correspondence

All correspondence was included with the agenda.

E. Administration of Oath

- Mr. Wolff administered the oath to those speaking.

F. Business

A. Case V-4-2020, 110 Latitude Lane, (address revised 2.21.2020, originally stated Longitude Lane) TMS# 535-06-00-179, Request for relief from the strict application of I'On Code Planned Development ordinance to allow an increase above the 60% maximum lot coverage of 12 square feet for a 'rear yard' lot to allow installation of an elevator. CORRESPONDENCE.

- Mr. Robertson reviewed staff comments with the Board (attachment 1)

Ms. Julie O'Connor, architect, reviewed the request with the Board. Mr. and Ms. Tenille stated that the elevator is needed due to medical issues.

Mr. Wolff closed public comments.

▶ *Mr. Duke moved for approval of the request based on the staff report and application. Mr. Barrow seconded the motion. All in favor.*

B. Case V-5-2020, 1992 Presidio Drive., TMS# 558-16-00-103, Request for relief from the strict application of the Quail Hollow Planned Development ordinance to allow an approximately four (4) foot rear yard encroachment to enclose existing rear, screened porch. The ordinance requires a twenty (20) foot rear yard setback.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Checkley Barker reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comments.

▶ *Mr. Wood moved for approval based on findings in the staff report, testimony received, and the fact that the porch was existing when purchased and there will be no further encroachment, and based on previous approvals for similar cases. Ms. Stevens seconded the motion. All in favor.*

C. Case V-6-2020, 1109 Charlotte Lane, TMS# 535-15-00-029, Request for relief from the strict application of §156.303 (C) to allow an approximate five (5) foot rear yard encroachment in R-1 Low Density Residential District. The ordinance requires a 25-foot rear yard.

▶ Mr. Barrow recused himself due to a conflict of interest.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Bill Pysh and Ms. Dian Pysh reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comments.

- *Mr. Wood moved for approval based on findings of staff report and facts, particularly 156.132(G)(4) as it will not encroach any further into the yard and should be allowed to be enclosed. Mr. Duke seconded the motion. All in favor. With Mr. Barrow abstaining.*

D. Case V-7-2020, 313 Hobcaw Drive., TMS# 514-08-00-048, Request for relief from the strict application of §156.303 (C) to allow an approximately three (3) foot side yard encroachment. The ordinance requires a minimum ten (10) foot side yard.

- Mr. Barrow recused himself due to a conflict of interest.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Wayne Butler, representative, reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comments.

- *Ms. Stevens moved for approval based on the findings that they are maintaining trees, reducing the footprint, the staff report, and application. Mr. Duke seconded the motion. All in favor with Mr. Barrow abstaining.*

E. Case V-8-2020, 1319 Theater Drive., TMS# 558-00-00-100, Request for relief from the strict application of §156.303 (C) to allow maintenance of an existing fifty-two (52) foot height for certain architectural elements and 37-foot parapet. The Wilson Tract Planned Development ordinance requires a maximum height of thirty-five (35) feet; however, Section 156.102 Height and Size of Building and/or Structures now allows exceptions for certain elements.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Stephen Boyd, architect, reviewed the request with the Board (attachment 1).

There being no comments, Mr. Wolff closed public comment.

Mr. Wood moved for approval of the request based on the findings of facts in the staff report, testimony received, and the changes in the ordinances would now stipulate the requested changes would be conforming. Mr. Duke seconded the motion. All in favor.

F. Case V-9-2020, 1127 Daffodil Lane, TMS# 562-08-00-161, Request for relief from the strict application Section 156.303 (C), R-4 Medium Density Residential District to allow a ten (10) foot rear yard encroachment for new structure. The ordinance requires a twenty (20) foot rear yard.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Matt McCauley reviewed the request with the Board.

Mr. Jeremy Moore, 1174 Plantation Lane, HOA Board member, expressed concern with the request. He suggested that forcing the home to be moved forward would be out of character for the neighborhood. He asked that the variance should be approved.

Mr. Steve Hurst, 971 Governor's Road, HOA president, agreed that the variance would mean the home would be consistent with the other homes in the neighborhood and asked that the request be approved.

Mr. Ron Kitersman, 1122 Snap Dragon, stated that these are patio homes and asked that the request be approved so that it is consistent with the character of the neighborhood with how the homes are situated on the lots.

Mr. Nick Kottle, 1125 Deleisseline, suggested that the variance should be approved.

Ms. Linda Jacinth, 1130 Daffodil Lane, suggested that the request should be approved.

Mr. Robertson referred to 156.107(B)(1) and stated that it does not give allowance for rear setbacks, only front setbacks.

Mr. Wolff closed public comments.

Mr. Wood moved for approval of the request based on the findings in the staff report, facts presented, and common sense. Mr. Duke seconded the motion. All in favor.

G. REQUEST FOR CONTINUANCE Case V-10-2020, 115 Friend Street, TMS# 532-05-00-069, Request for relief from the strict application of Section 156.313 (D)(3) to allow a 63 square foot (1%) impervious area increase. The ordinance limits impervious area to 40% of lot. CORRESPONDENCE

Mr. Robertson stated that a request for a continuance has been requested and reviewed the letter from Mr. Tim Cook with the Board.

Mr. Duke moved for approval of the continuance for 120 days based on the applicant working with Town on changes that could affect their application. Mr. Wood seconded the motion. All in favor.

H. Case V-11-2020, 422 Shannon Drive, TMS# 517-03-00-046, Request for relief from the strict application of Section 156.224 et al of the Tree Protection Ordinance to allow reduction in the amount of tree mitigation. CORRESPONDENCE

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Brian Maiden reviewed the request with the Board. He suggested that a 50% mitigation would be more appropriate.

There being no comments, Mr. Wolff closed public comment.

Mr. Wood moved for denial of the request based on the facts presented, the applicant's previous attendance before the Board, and full mitigation should be required. Mr. Barrow seconded the motion. All in favor.

G. Election of Officers

The Board elected Mr. Wolff as chair and Mr. Wood as vice-chair by secret ballot.

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 7:45 pm.

Submitted by,
L. Lynes
BOZA02242020